



Equal Pay Act

Overview

The Equal Pay Act prohibits pay discrimination based on sex of employees in both the public and private sectors. Specifically, an employer cannot discriminate "within any establishment in which such employees are employed, between employees on the basis of sex by the rate at which he pays wages employees of the opposite sex in such establishment for equal work on jobs the performance of which requires equal skill, effort, and responsibility, and which are performed under similar working conditions [29 USC 206](#) (d).

This Quick Start Guide covers the following Key Points:

1. [In general](#)
2. [Establishing a prima facie case](#)
3. [Defining 'establishment'](#)
4. [Defining 'equal work'](#)
5. [Cases addressing 'equal work'](#)
6. [Defining 'similar working conditions'](#)
7. [Comparison employees](#)
8. [Agency defense to a prima facie case](#)
9. [Seniority system](#)
10. [Merit system](#)
11. [Incentive system](#)
12. [Factors other than sex](#)
13. [Title VII and the Equal Pay Act](#)
14. [Remedies](#)

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

In general

- **Hadley:** The Equal Pay Act, codified at [29 USC 206](#) (d), is an amendment to the Fair Labor Standards Act, which prohibits discrimination based on sex in the payment of wages to employees. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Equal Pay Act](#).
- The EEOC regulations governing Equal Pay Act claims are at [29 CFR Part 1620](#); however, federal sector Equal Pay Act cases are processed under the provisions of [29 CFR Part 1614](#).
- When the jurisdictional prerequisites for both the Equal Pay Act and Title VII are satisfied, any violation of the EPA is also a violation of Title VII. [29 CFR 1620.27](#) (a).
- Both men and women are protected under the Equal Pay Act. [29 CFR 1620.1](#) (c).

Establishing a prima facie case

- In order to establish a prima facie case of discrimination under the Equal Pay Act, the complainant must show that she received less pay than an employee of the opposite sex, for equal work, that required equal skill, effort and responsibility, under similar working conditions within the same establishment. *Corning Glass Works v. Brennan*, [74 FEOR 9003](#), 417 U.S. 188 (1974). *See also* [CFR 1620.14](#) (a); [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- **Hadley:** As with the Age Discrimination in Employment Act, complainants alleging a violation of the EPA are not required to pursue an administrative complaint of discrimination. A complainant may file a civil action in U.S. District Court within two years of the alleged violation, or three years if the violation is willful. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Equal Pay Act](#); *see also* [29 CFR 1614.408](#).

Defining 'establishment'

- The term "establishment" refers to "a distinct physical place of business rather than to an entire business or 'enterprise,' which may include several separate places of business. Accordingly, each physically separate place of business is ordinarily considered a separate establishment." [29 CFR 1620.9](#) (a).
- However, under some "unusual circumstances," two or more distinct physical places of a business can be treated as a single establishment for example, where a central administrative unit hires employees, sets their wages, and assigns their location of employment, and where employees frequently interchange work locations and their daily duties are virtually identical and performed under similar working conditions. [29 CFR 1620.9](#) (b).

- An entire agency is not a single establishment for the purposes of the Equal Pay Act, but the agency's Western Region was considered a single establishment based on the regional management's control over grade and pay status. *Arnold and Faber v. Department of the Treasury*, [98 FEOR 3297](#), EEOC No. 01960490 (EEOC 1998).

Defining 'equal work'

- The "equal work" requirement does not mean that the positions at issue be exactly the same. Instead, they need only be "substantially equal." *Corning Glass Works v. Brennan*, [74 FEOR 9003](#), 417 U.S. 188 (1974).
- "What constitutes equal skill, equal effort, or equal responsibility cannot be precisely defined. In interpreting these key terms of the statute the broad remedial purpose of the law must be taken into consideration. The terms constitute separate tests, each of which must be met in order for the equal pay standard to apply." [29 CFR 1620.14](#) (a). *Telford v. Department of the Army*, [100 FEOR 3064](#), EEOC No. 01973892 (EEOC 1999).
- "In comparing two jobs for purposes of the EPA, consideration should be given to the *actual* duties that the employees are required to perform. Job *content*, not job titles or classifications, determine the equality of jobs." [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- "Skill includes such things as experience, training, education, and ability. It must be measured in terms of the performance requirements of the job." [29 CFR 1620.15](#).
- "Effort is concerned with the measurement of the physical or mental exertion needed for the performance of a job. Job factors which cause mental fatigue and stress, as well as those which alleviate fatigue, are to be considered in determining the effort required by the job. 'Effort' encompasses the total requirements of a job." [29 CFR 1620.16](#) (a).
- "Differences in the kind of effort exerted do not justify a compensation differential if the amount of effort is substantially the same." [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- "Responsibility is concerned with the degree of accountability required in the performance of the job, with emphasis on the importance of job obligation." [29 CFR 1620.17](#) (a).
- Factors to be considered in determining the level of responsibility in a job include:
 - i. The extent to which the employee works without supervision;
 - ii. The extent to which the employee exercises supervisory functions; and
 - iii. The impact of the employee's exercise of his or her job functions on the employer's business. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- "Differences in job responsibilities do not depend on job titles. Thus, designation of an employee as a 'supervisor' will not, by itself, defeat comparison under the EPA with an employee who is not designated as such. Moreover, the mere fact that an employee has assistants does not necessarily demonstrate that he or she has a more responsible position than one who does not have assistants." [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).

Cases addressing 'equal work'

- A senior attorney failed to establish a prima facie case under the Equal Pay Act because she did not show she performed work that was substantially equal in skill, effort, and responsibility to the work performed by a male coworker to which she compared herself. The attorney's responsibilities were related to EEO issues, while the coworker's related to unions and negotiations. She did not show the difference in job duties was minor. The coworker's duties involving communicating and negotiating with union officials required different skills, effort, and responsibility than the attorney's EEO and reasonable accommodation projects. *Vickie T. v. Department of Health and Human Services*, [122 LRP 28421](#), EEOC No. 2021002444 (EEOC OFO 2022).
- A trial attorney did not prevail on her EPA claim because she and the male coworker she cited as a comparator were not performing equal work. The male attorney was involved in long-term, complex litigation, including taking depositions, drafting briefs and agency responses, defending management officials at hearings, traveling to various locations, and advising senior level management officials. In contrast, the attorney's duties were generally short-term legal matters that rarely involved litigation or travel. *Hailey T. v. Department of Housing and Urban Development*, [120 LRP 31226](#), EEOC No. 2019001686 (EEOC OFO 2020).
- A research medical technologist was not subjected to pay discrimination. Two male coworkers with higher salaries performed work that required greater skill and effort. The male employees' job objectives were different on their performance plans and on their position descriptions. *Hensley v. Department of the Air Force*, [112 LRP 25687](#), EEOC No. 0120120975 (EEOC OFO 2012).
- The Department of Veterans Affairs did not violate the Equal Pay Act when it paid a female employee less than a male employee who formerly held her position. The male employee had more responsibilities. *Harvey v. Department of Veterans Affairs*, [109 LRP 57942](#), EEOC No. 012008222 (EEOC OFO 2009).
- The complainant failed to establish a prima facie case of discrimination under the Equal Pay Act because she did not show that her work "required equal skill, effort, and responsibility," as compared to two coworkers. The coworkers' responsibilities required a higher level of skill and responsibility, and less supervision. *Waller v. Department of Transportation*, [107 LRP 31243](#), EEOC No. 0720030069 (EEOC 2007).
- The complainant's Equal Pay Act claim failed because he was not required to perform higher level work for less pay than female employee. While the work of his tax specialist position may have overlapped somewhat with the work performed by higher graded revenue agents, the evidence indicated the positions did not have the same duties and responsibilities. *Lenz v. Department of the Treasury*, [10 LRP 72335](#), EEOC No. 01200553201 (EEOC OFO 2006).

- "In an EPA case, the focus is not on job descriptions or titles, but on job requirements and performance." *Simkins Finucan v. Postal Rate Commission*, [93 FEOR 3266](#), EEOC Appeal No. 01914057 (EEOC 1993). In *Simkins Finucan*, the EEOC found that a female attorney's job was not comparable to those of higher paid male attorneys because her assignments were not as difficult and she had more supervision.
- The complainant did not establish a prima facie violation of the Equal Pay Act because, although the core duties of the GS-12 and GS-13 positions were virtually identical, the male in the GS-13 position also had supervisory duties that required greater responsibility and legitimately entailed a higher salary. *McIntosh v. Department of Commerce*, [99 FEOR 3099](#), EEOC No. 01965547 (EEOC 1998).
- The complainant did not establish a prima facie violation of the Equal Pay Act because the contract specialist work she performed was not equal to that performed by two male coworkers, as she required technical assistance and review, and her assignments were significantly less complex. *Saborji v. General Services Administration*, [97 FEOR 3161](#), EEOC No. 01954408 (EEOC 1997).

Defining 'similar working conditions'

- "It should be noted that the EPA adopts the flexible standard of similarity as a basis for testing [the similarity of working conditions]. In determining whether the requirement is met, a practical judgment is required in light of whether the differences in working conditions are the kind customarily taken into consideration in setting wage levels." [29 CFR 1620.18](#) (a).
- "Comparability of 'working conditions' is measured by a more flexible standard than skill, effort, or responsibility, because the statute only requires that the working conditions be 'similar,' not 'equal.' [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- "The mere fact that jobs are in different departments of an establishment will not necessarily mean that the jobs are performed under dissimilar working conditions. This may or may not be the case." [29 CFR 1620.18](#) (a).
- "The term 'similar working conditions' encompasses two subfactors: 'surroundings' and 'hazards.' 'Surroundings' measure the elements, such as toxic chemicals or fumes, regularly encountered by a worker, their intensity and their frequency. 'Hazards' take into account the physical hazards regularly encountered, their frequency and the severity of injury they can cause." [29 CFR 1620.18](#) (a).

Comparison employees

- A prima facie EPA violation is established by showing that a male and a female receive unequal compensation for substantially equal jobs within the same establishment. A complainant cannot compare herself or himself to a hypothetical male or female; rather, the complainant must show that a specific employee of the opposite sex earned higher compensation for a substantially equal job. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- The comparators need not have held their jobs at the same time. For example, a prima facie violation of the EPA can be established if a male employee is replaced with a lower paid female, or a female employee is replaced with a higher paid male. On the other hand, if there have never been any men performing substantially the same work as women in a work establishment, or vice versa, it is not possible to establish an EPA violation. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- The Department of Veterans Affairs subjected a male medical administrative officer to sex discrimination in violation of the Equal Pay Act when it did not pay him at an equal level with a female medical administrative officer at another facility. The agency did not establish that a sex-neutral factor explained the pay disparity between the two employees who had equal duties. The EEOC found inadequate management's assertion that it did not have control over the grade levels and duties of employees at the other facility. *Smith v. Department of Veterans Affairs, Veterans Health Administration*, [111 LRP 7850](#), EEOC No. 0120091163 (EEOC OFO 2011).

Agency defense to a prima facie case

- Once the complainant has established a prima facie case, an agency can avoid liability if it can show that the pay difference is justified pursuant to: 1) a seniority system; 2) a merit system; 3) a system that measures earnings by quantity or quality of production; or 4) a differential based on any other factor other than sex. [29 USC 206](#) (d)(1).
- **Hadley:** The four defenses to a prima facie case are affirmative defenses for which the employer bears the burden of proof. [Hadley Guide to Federal Sector Equal Employment Law and Practice: EPA Analysis and Burdens Proof/Substantially Equal Work, citing Corning Glass Works v. Brennan, 74 FEOR 9003, 417 U.S. 188 \(1974\).](#)
- The models of proof under Title VII, the ADEA, and the ADA do not apply to the EPA. The complainant need only demonstrate a sex-based wage disparity in substantially equal jobs in the same establishment. If the employer cannot rebut that showing, it must prove that the wage disparity is based on one of the four affirmative defenses. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- An employer may lawfully compensate employees differently on the basis of a bona fide seniority, merit, or incentive system. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- To be a bona fide system, it must not have been adopted with discriminatory intent; it must be based on predetermined criteria; it must have been communicated to employees; and it must have been applied consistently and evenhandedly to employees of both sexes. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- An agency asserting that salary differentials between males and females are the result of factors other than sex must be able to establish what those factors are, and that the salary differential is

actually the result of applying those factors. *Moorehead v. Transportation Security Administration*, [108 LRP 69040](#) (Fed. Cl. 2008).

Seniority system

- A seniority system allocates rights, benefits and compensation according to length of employment. should be consistently applied to all employees unless there are defined exceptions which are known and understood by the employees. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).

Merit system

- A merit system rewards employees for exceptional job performance. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- A merit system, to operate as a defense, must be a structured procedure in which employees are evaluated at regular intervals according predetermined criteria, such as efficiency, accuracy and ability. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).

Incentive system

- An incentive system provides compensation on the basis of the quality or quantity of production. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- An incentive or productivity system is designed to encourage employees to work more productively and efficiently. For example, an employer might pay word processors a certain amount of money for every document produced. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).

Factors other than sex

- "The EPA permits a compensation differential based on a factor other than sex. While this defense encompasses a wide array of possible factors, the employer must establish that a sex-neutral factor, applied consistently, in fact explains the compensation disparity." [footnotes omitted.] [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- "An employer asserting a 'factor other than sex' defense also must show that the factor is related to job requirements or otherwise is beneficial to the employer's business. Moreover, the factor must be used reasonably in light of the employer's stated business purpose as well as its other practices." [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- The VA violated the Equal Pay Act and Title VII when it paid a female clinical pharmacy specialist less than a male coworker in the same position. The VA conceded that the specialist established a prima facie case under the EPA. The EEOC rejected its argument that the pay differential was based on a factor other than sex. The agency said that the Pharmacist Professional Standards Board set the starting pay pharmacists based on the employee's qualifications. However, the record showed that despite having more experience, education, and responsibility, the specialist was paid less than a male coworker at the same facility. *Beatrice B. v. Department of Veterans Affairs*, [120 LRP 31224](#), EEOC No. 2019001641 (EEOC OFO 2020).
- Even assuming a female attorney could establish a prima facie EPA claim, the agency showed that the higher pay received by a male attorney was based on a factor other than sex -- the coworker's superior qualifications, private sector experience, and a competing job offer at the time the agency sought to employ him. The EEOC found these were sex-neutral factors and were applied consistently. *Hailey T. v. Department of Housing and Urban Development*, [120 LRP 31226](#), EEOC No. 2019001686 (EEOC OFO 2020).
- An electronics technician trainee could not support her claim that she was paid less than two similarly situated male employees because of her sex. Assuming she established a prima facie case under the Equal Pay Act, the agency showed the difference in pay was justified based on a factor other than sex. She could not be promoted to a higher grade level while she was in a trainee position. She had to apply and compete for a permanent position upon completion of her training. *Complainant v. Department of Justice*, Federal Bureau of Prisons, 0120122928, [115 LRP 31064](#) (EEOC OFO 2015).
- An agency "cannot justify paying a female less money than males performing the same job by arguing that, unlike her male comparators, she failed to ask for more money." *Jones v. Department of Veterans Affairs*, [101 FEOR 1087](#), EEOC No. 0199471 (EEOC OFO 2000).

Job classification system

- The agency violated the Equal Pay Act when it paid the female complainant less than a male attorney with comparable responsibilities. The agency claimed the attorneys were assigned their positions based on a job classification system. However, the EEOC found that a classification system is a defense only if it reflects actual differences in the job duties and qualifications. There was nothing to show that the male attorney's work was more complex, required greater skill, or was of greater quantity. *Hanley v. Federal Labor Relations Authority*, [108 LRP 34074](#), EEOC No. 0720060033 (EEOC OFO 2008).
- The agency did not subject a female pharmacist to pay discrimination because two male pharmacists received higher pay due to a bona fide job classification system. The two male pharmacists were hired at a higher level than the complainant. Therefore, when all three were promoted under the appropriate "two-step promotion rule," the males were at a higher pay level. *Turnage v. Department of Veterans Affairs*, [106 LRP 58075](#), EEOC No. 01A53804 (EEOC OFO 2006).
- "A job classification system is a defense to an EPA claim only where the classification categories are related to and/or accurately reflect actual differences in the job duties and qualifications. The classification system must be neutrally written and applied and its requirements must be reasonably related to the job duties. A classification system offers no defense when the employee performed work beyond the job classification system."

classification with the employer's knowledge and consent [citations omitted]." *Miller v. Department of the Navy*, [96 FEOR 3049](#), EEOC No. 01943457 (EEOC 1995).

- An agency's classification system was not bona fide because it was not applied in a neutral manner. *Wewers v. General Service Administration*, [88 FEOR 1143](#), EEOC No. 01880297 (EEOC OFO 1988).
- "A job classification system is not a defense to a prima facie case of sex-based wage discrimination if an investigation shows that it does accurately reflect the actual duties performed by individuals in the different classifications." *Adams v. Department of Veterans Affairs*, [101 FEOR 1084](#), EEOC No. 01992806 (EEOC OFO 2000).
- The complainant was performing substantially equal work as the comparative male addiction therapists who were graded at a higher level. The difference in their work was minimal despite the agency's classification system. Further, the agency's desk audits showing the complainant was properly graded did not carry its burden. *Adams v. Department of Veterans Affairs*, [101 FEOR 1084](#), EEOC No. 01992806 (EEOC OFO 2000).

Prior salary

- After discussing the three main approaches applied by courts of appeal, the Federal Circuit joined the "middle ground" approach, finding that prior pay cannot be a factor other than sex if the prior pay itself is the product of sex discrimination. An employer must show the prior pay not based on sex. *Boyer v. United States*, [124 LRP 9494](#), No. 2022-1822 (Fed. Cir. 2024).
- A male senior federal air marshal identified three female comparators who allegedly performed the same duties but received higher pay. However, the pay difference was based on a factor other than sex. Their pay was based on their salaries before joining the federal government. As a result, the marshal's salary was less than the comparators. The EEOC found no evidence that the marshal or comparators' prior salary history before federal employment was the result of institutional sex discrimination. *Jamey M. v. Department of Homeland Security, Transportation Security Administration*, [123 LRP 18474](#), EEOC No. 2022001484 (EEOC OFO 2023).
- The agency did not discriminate against the female complainant when it paid a male worker in the same position a higher salary. The coworker's degree and experience in the field showed that the agency relied on factors other than sex in setting the coworker's salary. Although the male employee's salary was set to roughly match the salary he last received in the private sector, the complainant did not show that previous salaries in this particular profession or industry itself reflected historical discrimination against women. *Crim v. Department of Veterans Affairs*, [106 LRP 22497](#), EEOC No. 01A60301 (EEOC OFO 2006).

Hiring authority

- Even assuming an attorney established a prima facie case of discrimination under the EPA, the EEOC found the agency showed that the pay differential was based on a factor other than sex. The agency hired her in the excepted service using a GS-13 attorney position description to bring her onboard noncompetitively. The hiring process the agency used was a sex-neutral factor. *Vickie T. v. Department of Health and Human Services*, [122 LRP 28421](#), EEOC No. 2021002444 (EEOC OFO 2022).

Title VII and the Equal Pay Act

- **Hadley:** Claims of wage discrimination based on sex can be brought under the Equal Pay Act. They also can be pursued directly under Title VII. The claims are not mutually exclusive and both avenues of relief can be pursued simultaneously. See [29 CFR 1620.27](#). It should be noted, however, that Title VII is broader than the EPA and covers types of wage discrimination that are not actionable under the EPA. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Relationship to Title VII](#) see also [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- While there is considerable overlap in the coverage of the [EPA and Title VII], they are not identical. Title VII broadly prohibits discriminatory compensation practices, while the EPA only prohibits sex-based differentials in compensation for substantially equal jobs in the same establishment. Therefore, not all compensation practices that violate Title VII also violate the EPA. On the other hand, the Commission's EPA guidelines state that a practice that violates the EPA also will violate Title VII. [Policy and Guidance -- EEOC Compliance Manual, Section 10: Compensation Discrimination](#).
- In *Ledbetter v. Goodyear Tire & Rubber Company, Inc.*, [107 LRP 29655](#), 127 S. Ct. 2162 (2007), the U.S. Supreme Court threw out the Title VII sex discrimination claim of a private sector employee who based her lawsuit on alleged disparate pay raises that occurred prior to the statute of limitations. The Court noted that the plaintiff apparently abandoned her Equal Pay Act claim at the District Court level and observed that she would not have faced the Title VII "obstacles" if she pursued the EPA claim.
- The [Lilly Ledbetter Fair Pay Act of 2009](#) amended Title VII and the Age Discrimination in Employment Act, and modified the operation of the Americans with Disabilities Act and the Rehabilitation Act, to "clarify that a discriminatory compensation decision or other practice that is unlawful under such Acts occurs each time compensation is paid pursuant to the discriminatory compensation decision or other practice."
- The [Lilly Ledbetter Fair Pay Act of 2009](#) rejects the U.S. Supreme Court ruling in *Ledbetter v. Goodyear Tire and Rubber Company, Inc.*, [107 LRP 29655](#), 127 S. Ct. 2162 (2007), that the time limit for pursuing a claim of pay discrimination begins on the date the alleged discriminatory pay decision goes into effect and does not begin anew with each paycheck.
- Congress provided that the Lilly Ledbetter Fair Pay Act, and the amendments made by the act, take effect as if enacted on May 28, 2007, and apply to all claims of discrimination in compensation under Title VII, the Age Discrimination in Employment Act, the Americans with Disabilities Act, and the Rehabilitation Act of 1973, that were pending on or after that date. [Lilly Ledbetter Fair Pay Act of 2009](#)
- The EEOC reversed the dismissal of an employee's claim that the Air Force paid her lower wages and violated the Equal Pay Act. The EEOC found that, as the complainant was regularly paid wages, the correct time frame to back-calculate the timeliness of her compensation claim was 45 days from the date she initiated EEO counseling. Thus, her claim was timely, and the EEOC found

she properly asserted a claim for alleged age and sex discrimination with regard to her compensation. *Kitchen v. Department of the Air Force*, [109 LRP 30611](#), EEOC No. 0120090609 (EEOC OFO 2009).

- The complainant's claim that the discriminatory pay she received during her employment had an impact on her retirement benefits was properly dismissed for untimely EEO contact. In this case of first impression, the EEOC decided that the Lilly Ledbetter Fair Pay Act of 2009 does not apply to the payment of retirement benefits. Although a series of payments of discriminatory wages may constitute a continuing violation, a series of payments of discriminatory pension benefits usually does not. *Brakeall v. Environmental Protection Agency*, [110 LRP 73189](#), EEOC No. 0120093805 (EEOC 2010).

Remedies

- **Hadley:** The EPA has no provision for compensatory damages. However, the act does provide for liquidated damages up to the amount of back pay recovered. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Damages Under EPA](#); see [29 USC 216](#) (b).
- In Equal Pay Act cases, willfulness is not a required factor for liquidated damages. Such damages are available for a violation of the EPA unless the agency can prove that it acted in "good faith" and reasonably believed that its actions did not violate the EPA. A finding of willfulness under the EPA, however, may extend the limitations period on back pay from two (2) years to three (3) years. [EEOC MD-110, Chapter 11](#).
- **Hadley:** When a complainant establishes a violation of both the EPA and Title VII, he or she is entitled to recover under both statutes. However, duplicative recovery is not allowed. As a result, in appropriate circumstances, a successful complainant can recover back pay and liquidated damages under the EPA and compensatory damages under Title VII. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Damages Under EPA](#).
- Although compensatory damages are not available under the Equal Pay Act, they are available under Title VII for sex discrimination. In *Miller v. Department of the Navy*, [98 FEOR 3120](#), EEOC No. 04970014 (EEOC 1998), the complainant established a violation of the EPA and Title VII when she showed that the agency classified her position at a lower grade level than the positions of male performing substantially the same work. As a remedy, she received back pay, interest, liquidated damages, and \$75,000 in nonpecuniary damages, as well as future pecuniary damages.
- An agency may bind itself to pay attorney's fees on an Equal Pay Act claim, even though attorney's fees are not authorized on EPA claims at the administrative level, where it knowingly and voluntarily entered into a settlement agreement stating it will pay attorney's fees. *Dahlman v. Consumer Product Safety Commission*, [109 LRP 16948](#), EEOC No. 0720090004 (EEOC OFO 2009).

Other Resources

- [Quick Start Guide: Sex Discrimination](#)
- [Policy and Guidance: EEOC Compliance Manual, Section 10 -- Compensation Discrimination](#)
- [Policy and Guidance: Fact Sheet -- Facts About Equal Pay and Compensation Discrimination](#)
- [EEOC Management Directive 110, Chapter 4, Procedures for Related Processes](#)
- [EEOC Management Directive 110, Chapter 11, Remedies](#)

For more guidance, see:

- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 13 -- Bases of Discrimination Under Title VII, Subchapter 02 -- Sex Discrimination, Section M -- Equal Pay Act](#),
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 13 -- Bases of Discrimination Under Title VII, Subchapter 02 -- Sex Discrimination, Section L -- Equal Pay Act Subsection 04 -- Liquidated Damages](#)

Please share your experience and expertise. Forward any suggested additions or changes to this or other Quick Start Guides to QSGeditor@lrp.com.



© LRP Publications. All Rights Reserved.